The second point is that Law No. 10 covers crimes against humanity committed prior to the attack on Poland in 1939, and at least as far back as the Nazi seizure of power on 30 January, 1933. This is the interpretation most consistent with the obvious purposes of Law No. 10 as an enactment for the administration of justice in Germany. But, again, the provisions of the law itself leave no room for doubt.

Article II of Law No. 10 provides (in paragraph 5) that:

> In any trial or prosecution for a crime herein referred to, the accused shall not be entitled to the benefits of any statute of limitation in respect of the period from 30 January, 1933 to 1 July, 1945, nor shall any immunity, pardon, or amnesty granted under the Nazi regime be admitted as a bar to trial or punishment.

This provision has no application to war crimes, since the rules of war did not come into play, at the earliest, before the annexation of Austria in 1938. Nor, so far as we know, were there any German municipal laws recognizing or punishing crimes against peace, to which statutes of limitations might have applied, or any Nazi amnesties or pardons with respect thereto. This provision is clearly intended to apply primarily to crimes against humanity, and explicitly recognizes the possibility of their commission on and after 30 January, 1933.

Viewing Law No. 10 as a legislative enactment for the governance of Germany, what is the scope of crimes against humanity as therein defined? We can not and need not discuss all possible questions at this stage of this one case, and no doubt the tribunals may desire fuller discussion at a later stage in these proceedings. But certain things are clear. The definition condemns "murder", "rape", and other familiar crimes, but obviously not all murder and rape cases are crimes against humanity in the sense of the statute. Private and occasional murders and sex offenses, such as unfortunately occur even in the most orderly and democratic nations, are not within its intendment. Nor, we believe, are localized outbursts of race hatred, or petty discriminations, covered by the word "persecutions". At the opposite end